

MASTER AGREEMENT

MASTER SERVICES / BUSINESS AGREEMENT — TEMPLATE

Effective Date: [DD/MM/YYYY]

This Master Agreement (the “Agreement”) is entered into as of the Effective Date by and between the following parties:

PARTY A	PARTY B
Legal Name: [Company / Individual Name] Address: [Full Address] Email: [Email Address] Representative: [Name / Title]	Legal Name: [Company / Individual Name] Address: [Full Address] Email: [Email Address] Representative: [Name / Title]

1. Purpose and Scope

The parties intend to establish a framework under which [SERVICES / PRODUCTS / BUSINESS ACTIVITIES] may be provided. This Agreement sets out the general terms governing such activities and any Statements of Work, Orders, or other documents executed under it.

2. Definitions

“Services” means the services described in an applicable Statement of Work (“SOW”). “Deliverables” means the work products identified in an SOW. “Confidential Information” means non-public business, technical, financial, customer, commercial, or other proprietary information disclosed by either party.

3. Services and Statements of Work

Specific services, deliverables, milestones, timelines, dependencies, acceptance criteria, and project-specific terms may be documented in an SOW. Each SOW signed by both parties will form part of this Agreement. If an SOW conflicts with this Agreement, the SOW controls only for the specific subject matter expressly addressed in it.

4. Fees and Payment

Fees, taxes, payment milestones, invoicing requirements, currency, and applicable expenses will be stated in the relevant SOW or Order. Unless otherwise stated, invoices are payable within [15/30] days of receipt. Applicable taxes shall be handled in accordance with law.

5. Responsibilities of the Parties

Each party shall provide information, approvals, access, personnel, and cooperation reasonably necessary to perform its obligations. Each party is responsible for the accuracy and legality of materials and instructions it supplies.

6. Deliverables and Acceptance

Deliverables shall be reviewed according to the acceptance criteria specified in the applicable SOW. If no criteria are specified, the parties shall use reasonable commercial standards and promptly communicate any material deficiencies.

7. Intellectual Property

Pre-existing intellectual property remains owned by the party that owned it before the engagement. Ownership or licensing of newly created Deliverables shall be as expressly stated in the applicable SOW. Each party retains rights in its tools, methods, templates, know-how, and materials developed independently of the

engagement.

8. Confidentiality

Each party shall protect the other party's Confidential Information and use it only for purposes related to this Agreement. Confidentiality obligations, exclusions, compelled disclosure, and return/destruction requirements may be further governed by a separate NDA between the parties.

9. Data Protection and Security

Each party shall comply with applicable data-protection and privacy laws relevant to its activities under this Agreement and shall implement reasonable administrative, technical, and organizational safeguards appropriate to the information it handles.

10. Representations and Compliance

Each party represents that it has authority to enter into this Agreement and will perform its obligations in compliance with applicable laws and regulations. Neither party shall knowingly use the other party's materials in a manner that violates applicable law or third-party rights.

11. Warranties and Disclaimers

Except for express warranties stated in this Agreement or an SOW, the Services and Deliverables are provided subject to the terms stated in the applicable SOW. No party makes implied warranties except to the extent they cannot lawfully be excluded.

12. Limitation of Liability

To the maximum extent permitted by applicable law, each party's liability shall be limited as expressly agreed in this Agreement or the applicable SOW. Any exclusions, caps, or exceptions should be reviewed and completed for the relevant transaction and jurisdiction.

13. Indemnification

Where applicable, each party shall be responsible for claims arising from its breach of this Agreement, violation of law, or infringement of third-party rights, subject to the scope, procedures, exclusions, and limitations agreed by the parties.

14. Term and Termination

This Agreement begins on the Effective Date and continues until terminated by either party upon [30] days' written notice, unless otherwise agreed. Either party may terminate for material breach if the breach is not cured within [15/30] days after written notice, subject to applicable law and any SOW-specific terms.

15. Effect of Termination

Termination does not affect accrued payment obligations or provisions intended to survive termination. The parties shall cooperate in an orderly transition and return or destruction of applicable confidential materials as required by this Agreement.

16. Non-Solicitation / Non-Competition (Optional)

[Insert only if legally appropriate and enforceable in the applicable jurisdiction. Specify the exact scope, duration, geography, and permitted exceptions.]

17. Dispute Resolution

The parties shall first attempt in good faith to resolve disputes through authorized representatives. If unresolved, disputes shall be handled through [COURTS / ARBITRATION / MEDIATION] in accordance with the procedure stated here: [DETAILS].

18. Governing Law and Jurisdiction

This Agreement shall be governed by the laws of [STATE / COUNTRY]. Subject to the dispute-resolution provisions above, courts located in [CITY / STATE / COUNTRY] shall have jurisdiction.

19. Notices

Formal notices shall be sent to the addresses or email addresses designated by the parties. A party shall promptly notify the other of any change to its notice details.

20. General Terms

This Agreement and its SOWs constitute the agreement between the parties regarding their subject matter. Amendments must be in writing and signed by authorized representatives. If any provision is unenforceable, the remaining provisions remain effective. Neither party may assign this Agreement except as permitted by its terms or applicable law. Electronic signatures and counterparts may be accepted to the extent permitted by law.

21. Signatures

The authorized representatives of the parties have executed this Agreement as of the Effective Date.

PARTY A	PARTY B
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

Template note: Replace bracketed fields and have the agreement reviewed for the specific transaction, applicable law, and jurisdiction before signing.